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Case Number: 25NNCV07572 Hearing Date: September 18, 2026 Dept: T

Nektarios C.

Jacovides vs. People's Care, et al.

(1) Demurrer

to Plaintiff's First Amended Complaint; (2) Motion to Strike Portions of Plaintiff's First Amended Complaint

Moving Party: Defendant Los Angeles

County Developmental Services Foundation Inc. dba Frank D. Lanterman Regional Center

Responding Party: Plaintiff Nektarios C.

Jacovides

Tentative Ruling: (1) Sustain; (2) Deny

BACKGROUND

On

August 15, 2025, Plaintiff Nektarios C. Jacovides, in his individual capacity, ("Plaintiff") filed a complaint against Defendants People's Care, People's Care LLC, People's Care Los Angeles, LLC, People's Care Healthcare Systems, LLC, People's Care Holdings, LLC, People's Care Developmental Services, LLC, People's Care Bliss, LLC, People's Care Autism Services, LLC, People's Care Holdings, Inc, Bartlett Holding's, LLC, Los Angeles County Development Services Foundation Inc. dba Frank D. Lanterman Regional Center ("Defendant"), and Does 1 to 50, alleging the following causes of action: (1) financial dependent adult abuse; (2) dependent adult abuse –

neglect; (3) conversion; (4) claim of ownership under Probate Code §§ 850, 859; and (5) negligence/willful misconduct.

On

April 3, 2026, the Court sustained Defendant's demurrer to the complaint with leave to amend based solely on Plaintiff's failure to allege sufficient facts establishing his standing to bring the instant action as a person who lacks legal capacity under Code of Civil Procedure section 372(a)(4). In so ruling, the Court noted that it declined to address all other grounds for demurrer. In addition, the Court denied the concurrent motion to strike as moot. (Min. Order, 4/3/26.)

On

May 18, 2026, following the appointment of Selma Blunk as the Plaintiff's limited conservator, Plaintiff filed the operative first amended complaint ("FAC").

Defendant now concurrently demurs to all causes of action and moves to strike Plaintiff's request for punitive damages.

Plaintiff opposes, and Defendant replies.

MOVING PARTY POSITION

A. Demurrer

Defendant

argues that all of Plaintiff's causes of action are subject to demurrer because Plaintiff failed to exhaust his administrative remedies prior to filing the instant action and plead facts sufficient to show that he exhausted or attempted to exhaust these remedies.

Defendant

also argues that Plaintiff failed to state facts sufficient to constitute his first, second, third, and fifth causes of action against it and that the fourth cause of action improperly seeks probate relief.

OPPOSITION

A. Demurrer

Plaintiff

contends that the exhaustion doctrine does not convert financial exploitation, concealment, and dependent-adult abuse into an administrative service dispute and that California recognizes exception to exhaustion where no administrative remedy exists for the relief sought, the remedy is inadequate or unavailable, or the controversy lies outside the agency's jurisdiction.

Plaintiff

also contends that his causes of action are sufficiently pleaded and that the fourth cause of action is properly brought before the Court as decisional law authorizes his probate claim against Defendant in the instant action.

Plaintiff

requests leave to amend should the Court sustain any portion of the demurrer.

REPLY

A. Demurrer

Defendant

responds that Plaintiff was required to exhaust his administrative remedies, as Plaintiff's allegation concerns the provision of services by Defendant and are thereby subject to the exhaustion doctrine.

Defendant also reiterates its arguments as to the independent grounds for demurrer of each cause of action brought against it.

ANALYSIS

I. Legal

Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or

cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at p. 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B. Motion to Strike

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (*Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342; see, also, *City & County of San Francisco v Strahlendorf* (1992) 7 Cal.App.4th 1911,

1913 [motion may not be based on a party's declaration or factual representations made by counsel in the motion papers].)¿ In particular, a motion to strike can be used to attack the entire pleading or any part thereof—in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)¿

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)¿

II. Meet and Confer

Based on the declarations of defense counsel Molly M. Loy, it does not appear that counsel for the parties e met and conferred by telephone, video conference, or in person prior to the filing of the instant demurrer and motion to strike. Nevertheless, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).) Furthermore, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Proc. § 435.5, subd. (a)(4).)

III. Discussion

A. Demurrer

“It is well established that where a statute provides an administrative remedy, that remedy must be exhausted as a jurisdictional prerequisite to filing suit.” (Romero v. County of Kern (2025) 116 Cal.App.5th 1189, 1200.) “Under this rule, an administrative remedy is exhausted only upon ‘termination of all available, nonduplicative administrative review procedures.’ [Citation.]” (Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35 Cal.4th 1072, 1080.) “The doctrine of exhaustion of administrative remedies requires a party to exhaust all available

administrative remedies and obtain a final administrative decision as a condition precedent for judicial. [Citation.]

Thus, when an applicable ordinance, regulation or statute provides an adequate administrative remedy, a party must exhaust that remedy before seeking judicial relief. [Citation.]" (Muskan

Food & Fuel, Inc. v. City of Fresno (2021) 69 Cal.App.5th 372, 383.) "In the context of administrative

proceedings, a controversy is not ripe for adjudication until the administrative process is completed and the agency makes a final decision that results in a direct and immediate impact on the parties. [Citation]."

(Tejon Real Estate, LLC v. City of Los Angeles (2014) 223 Cal.App.4th 149, 156, internal quotes omitted.)

Here, Plaintiff alleges that he is

"a developmentally disabled adult who was subjected to neglect and financial abuse while receiving caregiving services from" People's Care and that Defendant "contributed to the unsafe conditions by failing to appropriately vendor, oversee, investigate, and provide information about the facility to its disabled clients, despite having a duty to do so." (FAC ¶¶ 1, 5.) Plaintiff alleges that Defendant is a regional center "tasked with, among other things, working with developmentally disabled persons who reside in a certain area and the facilities that serve them." (Id. ¶ 9.) Plaintiff also alleges that Defendant is "is mandated by law to, among other things: identify the services and supports needed by each individual disabled client; develop and maintain individualized program plans ("IPP plans") to assure that the needed services or supports are being provided; locate service providers that can provide the needed services or supports; monitor and supervise service providers to ensure that the disabled person is in a safe environment and provided services that meet their IPP plan goals; monitor and supervise service providers for violations of statute, duty, or internal policies and procedures; remedy and prevent violations of statute, duty, or internal policies and procedures; and advocate on behalf of disabled persons." (Ibid.)

After Plaintiff's mother died in

2013, and from 2018 onward, Defendant allegedly "was supposed to be providing him with certain money management service providers or vendors contracted with the Department of Developmental Services to provide such FMS services to disabled persons." (FAC ¶¶ 16–17.) In addition, after his residence burned down in 2019, Plaintiff alleges that Defendant moved him to another rental location and failed to ensure his rent was paid in 2020 and 2021, although

Defendant was in receipt of Plaintiff's money.

(Id. ¶ 18.) Despite

obligations to handle Plaintiff's money management, no spending plan was ever attached to Plaintiff's IPP. (Id.

¶ 19.) Defendant also allegedly failed

to delegate these services to Department of Developmental Services vendors and

knew that these entities were misusing Plaintiff's funds. (Id. ¶ 20.) No full accounting of these funds, including Plaintiff's stimulus checks, was ever made.

(Id. ¶¶ 30, 40.)

Under California law, the State

Department of Developmental Services ("DDS") has "jurisdiction over the laws relating to the care, custody, and treatment of developmentally disabled person." (Harbor Regional Center v.

Office of Administrative Hearings (2012) 210 Cal.App.4th 293, 306 [citing Welf. & Inst. Code § 4416].) As the

DDS has jurisdiction over such matters, the Lanterman Developmental

Disabilities Services Act (the "Lanterman Act") specifies that the DDS "shall promulgate regulations to implement this chapter, which shall be binding on

every regional center or state-operated facility." (Welf. & Inst. Code § 4705.) Subject to these regulations, the Lanterman Act further requires that "[e]very regional center or state-operated facility

shall, as a condition of continued receipt of state funds, have an appeals

procedure for resolving conflicts between the regional center or state-operated

facility and recipients of, or applicants for, service." (Ibid.) The Act also sets forth the following requirements regarding the procedure for fair hearings:

(a)(1)

Any public or private agency receiving state funds for the purpose of serving persons with developmental disabilities not otherwise subject to the provisions of this chapter shall, as a condition of continued receipt of state funds, adopt and periodically review a written internal grievance procedure.

(b)

An agency that employs an appeals procedure mandated by any other statute shall be considered to have an approved procedure for purposes of this chapter.

(c)(1)

The regional center's and the state-operated facility's appeals procedures for informal meetings, mediations, and fair hearings shall be stated in writing, in English and any other language that may be appropriate to the preferred

language of the applicants and recipients served by the regional center or the state-operated facility.

(2)

All recipients and applicants, and persons having legal responsibility for recipients or applicants, shall be informed verbally of, and shall be notified in writing in their preferred language of, the regional center's or the state-operated facility's appeals procedures for informal meetings, mediations, and fair hearings when they apply for service, when they are denied service, when notice of service modification is given pursuant to Section 4710, and upon request.

(d)

If, in the opinion of any person, the rights or interests of a claimant who has not personally authorized a representative will not be properly protected or advocated, the State Council on Developmental Disabilities and the clients' right advocate assigned to the regional center or state-operated facility shall be notified, and the State Council on Developmental Disabilities may appoint a person or agency as representative, pursuant to subdivision (a) of Section 4541, to assist the claimant in the mediation and fair hearing procedure. The appointment shall be in writing to the authorized representative and a copy of the appointment shall be immediately mailed to the regional center director or the state-operated facility director.

(Id., subds. (a)–(d).)

Moreover,

the Lanterman Act expressly states that, with the exception of certain Medicaid home and community-based services, “all issues concerning the rights of persons with developmental disabilities to receive services under this division shall be decided under this chapter, including those issues related to fair hearings.” (Welf. & Inst. Code § 4706.) Accordingly, as set forth under the Act’s appeal

procedure chapter, “[a]ny applicant for or recipient of services, or authorized representative of the applicant or recipient, who is dissatisfied with a decision or action of the regional center or state-operated facility under this division shall, upon filing a request within 60 days after notification of that decision or action, be afforded an opportunity for an informal meeting, a mediation, and a fair hearing.” (Welf.

& Inst. Code § 4710.5.) “Furthermore,

the Act's fair hearing procedures are a claimant's exclusive remedy ‘for issues

relating to the provision of services,' which must first be exhausted before seeking judicial relief in the superior court. [Citation.]" (Harbor Regional Center, supra, 210 Cal.App.4th at p. 312.)

Although Plaintiff sets forth various facts in the FAC regarding Defendant's alleged misconduct, these allegations reasonably appear to concern Defendant's provision of services to Plaintiff under the Lanterman Act, including the implementation and development of his IPP plan. As a regional center, Defendant was specifically assigned responsibility for the provision of this service to Plaintiff, as evident from the Legislature's stated intent in codifying the regional center system's role in relation to IPP plans:

It is the intent of the Legislature that the individual program plan and provision of services and supports by the regional center system is centered on the individual and the family of the individual with developmental disabilities and takes into account the needs and preferences of the individual and the family, if appropriate. It is further the intent of the Legislature that the individual program plan be developed using a person-centered approach that reflects the needs and preferences of the consumer, and, as appropriate, their family. The services and supports provided by the regional center should assist each consumer in achieving their personal outcomes and life goals and promote inclusion in their community. It is the further intent of the Legislature to ensure that the provision of services to consumers and their families be effective in meeting the goals stated in the individual program plan, reflect the preferences and choices of the consumer, and reflect the cost-effective use of public resources.

(Welf. & Inst. Code § 4646.)

Because the underlying factual allegations concern issues relating to Defendant's provision of this service and others stated in the FAC, it is evident from the face of the complaint that the Act encompasses these alleged issues.

Given this statutory framework and the FAC's factual allegations concerning Defendant's provision of services to Plaintiff, the Court finds that the Lanterman

Act provides an administrative remedy for “all issues concerning” Plaintiff’s right to receive the alleged services, a right which extended to any of Defendant’s alleged decisions or actions in providing said services that Plaintiff or his guardian ad litem believed were not in his best interest. (Welf. & Inst. Code § 4710.5; see, e.g., Harbor Regional Center, *supra*, 210 Cal.App.4th at p. 311 [“These are three broadly worded provisions which, as part of a remedial act, we must construe liberally to carry out the purposes underlying the Act.”].)

The Court further notes that Plaintiff specifically alleges that he “engaged in administrative remedies, both directly and by the probate Guardian ad litem, to try and remedy some of the budget and supervisory violations” but offers no factual allegations establishing his exhaustion of these remedies prior to commencing this action. (FAC ¶ 6.) Instead, Plaintiff only offers a legal contention that the alleged statutory violations and direct conduct of Defendant “was not subject to administrative remedies and as such, the conduct complained of does not mandate exhaustion of administrative remedies.”

(*Ibid.*) However, as

Plaintiff’s factual allegations concern the provision of services, including development and implementation of Plaintiff’s IPP plan, the Court finds that the Lanterman Act provides fair hearings as the exclusive remedy for any of the alleged issues concerning Defendant’s provision of these services. (See, also, *Conservatorship of Whitley* (2007) 155 Cal.App.4th 1447, 1463 [“This determination of exclusivity is not only supported by the comprehensive statutory scheme but by language found in the Lanterman Act itself, expressly making fair hearings the exclusive remedy for issues relating to the provision of services.”].) Nor does Plaintiff set forth any factual allegations establishing a recognized exception to the exhaustion doctrine.

Thus, as Plaintiff failed to alleged facts establishing the exhaustion of his remedies under the Act, the Court further finds that the FAC does not set forth a controversy that is ripe for adjudication.

Therefore,

as Plaintiff has not shown that the defect is curable through further amendment, the demurrer is sustained without leave to amend. Accordingly, the Court declines to address the other grounds upon which Defendant demurs to each of Plaintiff’s causes of action.

Moreover, as the Court sustained the demurrer in its entirety, the concurrent motion to strike is denied as moot.

RULING

Defendant Los Angeles County Developmental Services Foundation Inc. dba Frank D. Lanterman Regional Center's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED without leave to amend.

Defendant's Motion to Strike Portions of Plaintiff's First Amended Complaint is DENIED.